

26CHCV02383 26CHCV02383

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Case Number: 26CHCV02383 Hearing Date: July 16, 2026 Dept: F46

Dept. F-46

Hearing Date: July 14, 2026

Case Number: 26CHCV02383

OSC RE PRELIMINARY

INJUNCTION

Motion filed on June 18, 2026.

MOVING PARTY: Leigh Hansen (Plaintiff)

RESPONDING PARTY: Carle Manley, individually and as trustee
of the Carle T. Manley Trust (Defendant)

NOTICE: OK.

RELIEF REQUESTED: Order restraining Defendant from entering
or coming within 300 yards of Plaintiff or the residential property located at
29302 Discovery Ridge Drive, Santa Clarita, California 91390, contacting
Plaintiff, entering or accessing the property, interfering with Plaintiff's
quiet enjoyment, and damaging or altering the property.

RULING: Granted in Part.

PROCEDURAL BACKGROUND

On June 12, 2026, Plaintiff filed the operative Verified Complaint against Defendant, asserting claims for (1) Quiet Title, (2) Partition, (3) Constructive Trust, (4) Accounting, (5) Trespass, (6) Harassment, (7) Intentional Infliction of Emotional Distress, (8) Property Damage, (9) Private Nuisance, (10) Breach of Contract, (11) Breach of the Implied Covenant of Good Faith and Fair Dealing, (12) Unjust Enrichment, and (13) Injunctive Relief.

On June 18, 2026, Plaintiff filed an ex parte application for a temporary restraining order and order to show cause regarding a preliminary injunction, supported by the declarations of Plaintiff and Steffanie Stelnick.

On June 22, 2026, the Court granted the application in part, entered a temporary restraining order, required a \$1,000 undertaking, and set the preliminary injunction hearing for July 14, 2026.

Defendant filed an opposition and supporting declaration with Exhibits A through H on June 30, 2026. Plaintiff filed a reply and evidentiary objections on July 1, 2026.

FACTUAL BACKGROUND

Plaintiff has resided at the residential property located at 29302 Discovery Ridge Drive, Santa Clarita, California 91390 (Property) for approximately 16 years. She alleges that she and Defendant were in a confidential and domestic relationship for approximately 18 years, that Defendant represented she would share in the ownership and equity of the Property, and that she contributed approximately \$556,000 toward the Property in reliance on those representations. Defendant denies promising Plaintiff an ownership interest. Defendant acquired the Property in 2009 and later transferred title to himself as trustee of the Carle T. Manley Trust. Plaintiff has never held record title. (Hansen Decl. ¶¶ 2-6; Manley Decl. ¶ 3, Ex. A.)

The record includes a written Residential Lease Agreement signed by Plaintiff and Defendant. The lease identifies Plaintiff as a tenant and Defendant as the landlord. It requires Plaintiff to make the premises available for repairs upon reasonable notice, deems 24-hour written notice reasonable, prohibits Plaintiff from adding, altering, or rekeying locks without Defendant's prior written consent, and requires that Defendant be provided keys capable of gaining entry. Defendant also submits recurring payment

records labeled as rent and communications in which the parties discussed rent, insurance, maintenance, and other property expenses. (Manley Decl. ¶¶ 4-7, Exs. B-D.)

On June 3, 2026, Defendant served a Three-Day Notice to Pay Rent or Quit and a notice stating that he intended to enter the garage on June 4, 2026 to remove personal property he claimed belonged to him. Defendant did not proceed with that entry after Plaintiff's counsel objected. (Manley Decl. ¶ 8, Ex. E.)

On June 7, 2026, Defendant served another notice stating that he would enter the garage on June 8, 2026 at 10:00 a.m. to inspect and repair a water-heater overflow and inspect the garage-door operator and mechanical structure. The notice requested that the roll-up garage door be open and stated that workers or contractors would be present. (Manley Decl. ¶ 9, Ex. F.)

Defendant arrived at the noticed time with a plumber after requesting a keep-the-peace response from the Sheriff's Department. The garage door was not open. Defendant discovered that the side-door lock had been changed and could not be opened with his key. Plaintiff had not obtained Defendant's consent to change the lock or provided him a replacement key. Plaintiff does not dispute that she changed the garage-access lock to prevent Defendant from entering. (Manley Decl. ¶¶ 10-12; Reply at pp. 1-2.)

Defendant used a drill to remove the changed deadbolt, replaced it with a lock operable by the original keys, and entered the garage. Defendant states that the plumber then performed work in the garage. Defendant did not enter the interior living area, remove Plaintiff or her property, prevent Plaintiff from accessing the residence, or directly confront her. (Manley Decl. ¶¶ 13-15, 17.)

Plaintiff characterizes the incident as a forced entry and states that Defendant's use of a drill and alteration of the lock damaged the Property, caused her to fear for her safety, and made her feel unsafe in her home. Plaintiff also refers generally to prior unauthorized entries and letters or notes left by Defendant but does not identify their dates, circumstances, or contents. (Hansen Decl. ¶¶ 7-17.)

LEGAL STANDARD

The purpose of a preliminary injunction is to preserve the status quo pending a decision on the merits. (Major v. Miraverde Homeowners Ass'n. (1992) 7 Cal.App.4th 618, 623.) In deciding whether or not to grant a preliminary injunction, the court looks to two factors, "(1) the likelihood that the plaintiff will prevail on the merits, and (2) the relative balance of harms that is likely to result from the granting or denial of interim injunctive relief." (White v. Davis (2003) 30 Cal.4th 528, 553-554.) The factors are interrelated, with a greater showing on one permitting a lesser showing on the other. (Dodge, Warren & Peters Ins. Services, Inc. v. Riley (2003) 105 Cal.App.4th 1414, 1420.) However, the party seeking an injunction must demonstrate at least a reasonable probability of success on the merits. (IT Corp. v. County of Imperial (1983) 35 Cal.3d 63, 73-74.) The party seeking the injunction bears the burden of demonstrating both a likelihood of success on the merits and the occurrence of irreparable harm. (Savage v. Trammell Crow Co. (1990) 223 Cal.App.3d 1562, 1571.) Irreparable harm may exist if the plaintiff can show an inadequate remedy at law. (Code Civ. Proc., § 526, subd. (a).)

DISCUSSION

Evidentiary Objections

The Court rules on Plaintiff's evidentiary objections as follows:

As to the Manley Declaration: Overruled: Paragraphs 3, 4, 6 through 9, 11, 14, 18, and 20; Sustained: Paragraph 16 (hearsay) and paragraph 19 (improper legal conclusion, argumentative).

As to Defendant's Exhibits: Overruled: Exhibits A through F and H; Sustained: Exhibit G (hearsay, lack of foundation).

Plaintiff's general objection is overruled.

Scope of Application

Plaintiff seeks preliminary relief based on trespass, harassment, constructive trust or equitable ownership, and private nuisance. The application does not develop the probable merits of Plaintiff's remaining

causes of action as independent grounds for preliminary relief. The Court therefore limits its analysis to the grounds on which Plaintiff moved.

Likelihood of Success

1. Trespass

Trespass requires Plaintiff's ownership or control of the property, Defendant's intentional, reckless, or negligent entry, lack of permission for the entry or conduct exceeding the scope of permission, resulting harm, and causation. (Ralphs Grocery Co. v. Victory Consultants, Inc. (2017) 17 Cal.App.5th 245, 262.)

Civil Code section 1954 provides that "[a] landlord may enter the dwelling unit only" in specified circumstances, including "[i]n case of emergency," "[t]o make necessary or agreed repairs, decorations, alterations or improvements, supply necessary or agreed services," when the tenant has abandoned or surrendered the premises, or "[p]ursuant to court order." (Civ. Code, § 1954, subd. (a)(1)-(4).) Except in cases of emergency or abandonment or surrender, "entry may not be made during other than normal business hours unless the tenant consents to an entry during other than normal business hours at the time of entry." (Id., subd. (b).) "The landlord may not abuse the right of access or use it to harass the tenant." (Id., subd. (c).) Except as otherwise provided, "the landlord shall give the tenant reasonable notice in writing of his or her intent to enter and enter only during normal business hours." (Id., subd. (d)(1).) The notice must include the date, approximate time, and purpose of entry, and 24 hours is presumed reasonable absent evidence to the contrary. (Ibid.)

Section 1954 "forbids the landlord from entering a dwelling, except in specified circumstances." (Dromy v. Lukovsky (2013) 219 Cal.App.4th 278, 283.) The statute balances the tenant's right to quiet enjoyment against the landlord's legitimate property interests and requires that the right of access be exercised reasonably under the circumstances. (Id. at pp. 285-286.)

Here, Plaintiff has shown possession and control of the Property through her long-term occupancy, and Defendant admits that he intentionally entered the attached garage. Defendant had a statutory and contractual basis to seek access for the noticed repair. The lease required

Plaintiff to provide access for repairs, prohibited her from rekeying the locks without Defendant's consent, and required that Defendant be provided working keys. Defendant also served written notice identifying the repair purpose and arrived with a plumber. The issue is therefore whether Defendant exceeded the scope of that access right by drilling out the changed lock.

The record supports a reasonable probability that he did.

Defendant's first notice, served June 3, sought entry to the same garage to remove personal property, a purpose not among those enumerated in Civil Code section 1954, subdivision (a). When Plaintiff's counsel objected, Defendant did not proceed. Four days later, Defendant served a new notice for the same location, this time identifying a repair purpose, and arranged for the Sheriff's Department to stand by to keep the peace. When the garage door was not open and the changed lock prevented access, Defendant did not seek judicial relief but instead used a drill to remove the lock.

California's forcible-entry authorities distinguish between the existence of a right to possession and the manner in which entry is obtained. A landlord's ownership or right to possession is not a defense to the forcible character of an entry, and actual possession may not be disturbed except through legal process. (*Jordan v. Talbot* (1961) 55 Cal.2d 597, 603-605.) The absence of violence does not compel a different conclusion because an entry accomplished by breaking a lock may constitute forcible entry without any additional force, threat, or intimidation. (*Karp v. Margolis* (1958) 159 Cal.App.2d 69, 73.) Nothing in Civil Code section 1954 authorizes the use of force or tools to obtain entry, and the statute expressly prohibits abuse of the right of access. (Civ. Code, § 1954, subd. (c).)

Although Plaintiff's lock change violated the lease, Defendant's admitted removal of the lock supports a reasonable probability that he exceeded the permissible manner of exercising his access right.

Plaintiff has therefore shown a reasonable probability of prevailing on this limited theory. That showing supports an injunction against forced nonemergency entry, but not an order prohibiting access otherwise permitted by Civil Code section 1954 or the lease.

2. Harassment

Plaintiff relies on the June 8 incident, alleged prior

entries, continued letters and notes, and resulting fear. (Hansen Decl. ¶¶ 7-16.) Her declaration does not identify the dates or circumstances of any prior entry, describe the contents of the letters or notes, or identify any threat made by Defendant. (Hansen Decl. ¶¶ 7-15.) Defendant contends the June 8 incident involved no direct confrontation, stalking, violence, or express threat. (Manley Decl. ¶¶ 14-15, 18.)

Plaintiff has not shown a reasonable probability of prevailing on a harassment theory sufficient to support a 300-yard stay-away order or blanket prohibition on contact.

3. Constructive Trust

A constructive trust is an equitable remedy. (*Habitat Trust for Wildlife, Inc. v. City of Rancho Cucamonga* (2009) 175 Cal.App.4th 1306, 1332.) The requirements are a wrongful act underlying the requested remedy, specific identifiable property or a property interest, Plaintiff's right to that property, and Defendant's title to it. (*Stansfield v. Starkey* (1990) 220 Cal.App.3d 59, 76; Civ. Code, § 2224.)

Plaintiff has identified the Property, and Defendant acknowledges that he holds title as trustee of the Carle T. Manley Trust. (Hansen Decl. ¶¶ 2-6; Manley Decl. ¶ 3, Ex. A.) Plaintiff's showing is less certain as to a wrongful act and her claimed right to an interest in the Property.

Plaintiff states that Defendant promised she would share in the ownership and equity of the Property and that she contributed approximately \$556,000 in reliance on those representations. (Hansen Decl. ¶¶ 4-6.) Defendant presents a written lease, recurring payments labeled as rent, and communications concerning rent and property expenses. (Manley Decl. ¶¶ 4-7, Exs. B-D.) The moving papers do not include records tracing the asserted contributions or identifying the nature or extent of the ownership interest allegedly promised.

Plaintiff has raised factual questions concerning the parties' relationship and financial arrangement but has not shown a reasonable probability of establishing a present right to a defined interest in the Property through constructive trust. That theory does not independently support

the requested preliminary relief.

4. Private

Nuisance

A private nuisance requires interference with Plaintiff's use and enjoyment of property, substantial actual damage from the invasion, and interference that is unreasonable in its nature, duration, or amount. (Today's IV, Inc. v. Los Angeles County Metropolitan Transportation Authority (2022) 83 Cal.App.5th 1137, 1176; San Diego Gas & Electric Co. v. Superior Court (1996) 13 Cal.4th 893, 938; Civ. Code, § 3479.)

Plaintiff has shown that Defendant's removal of the garage lock and entry affected her use and enjoyment of the Property. (Hansen Decl. ¶¶ 9-15.) The developed record, however, concerns one entry into the garage. Defendant states that he entered only the garage and had no direct contact or confrontation with Plaintiff. (Manley Decl. ¶¶ 13-15, 17.) Plaintiff presents no specific evidence of loss of use, utility interruption, removal of personal property, or a continuing physical condition. Her generalized references to other incidents do not establish their nature, duration, or frequency. (Hansen Decl. ¶¶ 7-15.)

Plaintiff has not shown a reasonable probability that Defendant's conduct constituted a substantial and unreasonable interference sufficient to support broader relief under a private nuisance theory.

Irreparable Harm and Balance of Harms

The status quo is the last actual, peaceable, uncontested condition preceding the controversy. (Voorhies v. Greene (1983) 139 Cal.App.3d 989, 995.) Irreparable harm exists where the challenged conduct causes an actual or threatened injury to personal or property rights that cannot be adequately compensated by damages. (Brownfield v. Daniel Freeman Marina Hospital (1989) 208 Cal.App.3d 405, 410; Code Civ. Proc., § 526, subd. (a)(2), (4).) A plaintiff need not wait until the threatened harm occurs, but the evidence must show a realistic prospect that the prohibited conduct will recur. (Southern Christian Leadership Conference v. Al Malaikah Auditorium Co. (1991) 230 Cal.App.3d 207, 223; Korean Philadelphia Presbyterian Church v. California Presbytery (2000) 77 Cal.App.4th 1069, 1084.)

Here, the last peaceable condition preceding the June 8 incident was Plaintiff's continued occupancy of the residence without Defendant using tools to overcome a lock and obtain entry. Defendant had previously served a June 3 notice stating that he intended to enter the garage on June 4 to remove personal property. Defendant did not proceed after Plaintiff's counsel objected. (Manley Decl. ¶ 8, Ex. E.) Defendant thereafter served the June 7 notice and, on June 8, drilled out the changed deadbolt and entered the garage after access was withheld. (Manley Decl. ¶¶ 9-14, 17.) The sequence shows that the parties' dispute concerning access to the garage remained unresolved.

Plaintiff states that the June 8 incident caused her to fear that Defendant would return, enter again, damage the Property, or escalate the dispute. (Hansen Decl. ¶¶ 10-17.) The threatened harm is not speculative. It is supported by the recent use of tools to obtain entry, the alteration of the lock, and the parties' continuing disagreement concerning access. Monetary damages would not adequately remedy another forced entry or the resulting interference with Plaintiff's residential possession.

The balance of harms therefore favors a narrow restraint against forced nonemergency entry. Defendant remains free to serve lawful notices and obtain access as permitted by Civil Code section 1954 and the lease. He may also request Plaintiff's written consent, enter during an emergency, seek judicial authorization, and pursue any available contractual or possessory remedy. Defendant states that he is willing to comply with reasonable interim restrictions. (Manley Decl. ¶ 20.) A restriction limited to the use of force or tools imposes little burden on Defendant while protecting Plaintiff against recurrence of the specific harm shown.

A preliminary injunction must be narrowly tailored to prevent the harm at issue and sufficiently precise to provide fair notice of the conduct prohibited. (Thompson v. 10,000 RV Sales, Inc. (2005) 130 Cal.App.4th 950, 979-980; People v. Uber Technologies, Inc. (2020) 56 Cal.App.5th 266, 316.)

The record does not support the requested 300-yard stay-away order or blanket prohibition on contact. Defendant gave advance notice, arrived with a plumber for a stated repair purpose, requested a keep-the-peace response from the Sheriff's Department, entered only the garage, and had no direct

confrontation with Plaintiff. (Manley Decl. ¶¶ 9-15.) Plaintiff identifies no stalking, violence, or express threat requiring those broader restraints.

Accordingly, the Court will issue a preliminary injunction as ordered below.

Undertaking

When a preliminary injunction is granted, the Court must require an undertaking sufficient to compensate the restrained party for damages caused by the injunction if it is later determined that the injunction was improperly issued. (Code Civ. Proc., § 529.) An undertaking posted for a temporary restraining order does not satisfy the separate undertaking required for a preliminary injunction. (Mangini v. J.G. Durand International (1994) 31 Cal.App.4th 214, 218.)

Here, Defendant presents no evidence quantifying lost rent, repair costs, lost use, or other foreseeable monetary damage likely to result from the restraints imposed. Defendant retains the ability to obtain access by written consent, during an emergency, or by further court order and may pursue any available judicial remedy. The Court therefore fixes the preliminary injunction undertaking at \$1,000.

CONCLUSION

Plaintiff's request for a preliminary injunction is granted in part.

Defendant may serve notices and exercise access rights as permitted by Civil Code section 1954 and the lease. For any nonemergency entry, however, Defendant shall not use force, drills, locksmiths, or other tools or means to defeat, remove, replace, rekey, alter, damage, or disable any lock or security device at the residence located at 29302 Discovery Ridge Drive, Santa Clarita, California 91390, including the attached garage. If access cannot be accomplished without such means, Defendant shall not enter unless Plaintiff gives prior written consent or the Court authorizes entry. This restriction does not apply in an emergency within the meaning of Civil Code section 1954, subdivision (a)(1).

Plaintiff's requests for a 300-yard stay-away order, a

blanket prohibition on contact, and a complete prohibition on Defendant's entry are denied.

Within five court days, Plaintiff shall submit a proposed formal order consistent with this ruling and post a new preliminary injunction undertaking in the amount of \$1,000. The preliminary injunction shall become effective upon filing of the undertaking and entry of the formal written order.

The temporary restraining order entered on June 22, 2026 shall remain in effect through July 21, 2026, unless the preliminary injunction becomes effective sooner or the Court orders otherwise. If Plaintiff does not timely submit the proposed formal order and undertaking, the temporary restraining order shall expire at the end of July 21, 2026, and the preliminary injunction shall not take effect.

The preliminary injunction shall remain in effect until judgment or further order of the Court.